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ELECTRONICALLY
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Superior Court of California,
County of San Francisco

06/15/2026
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Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S SUPPLEMENTAL
BENCH BRIEF RE JUDICIAL
ROADMAP**

(CRC 3.1112(b))

Dept.: 302
Date: June 24, 2026

**PLAINTIFF'S SUPPLEMENTAL BENCH BRIEF RE JUDICIAL ROADMAP
FOR THE JUNE 24, 2026 CONSOLIDATED HEARING**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** June 15, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

AUTHORITY FOR THE VEHICLE

Plaintiff submits this Supplemental Bench Brief under California Rules of Court, rule 3.1112(b)
("other papers"), rule 3.1113(j) (incorporation by reference), and rule 3.1300(d). As a non-memorandum
other paper, this Roadmap is not subject to the fifteen-page cap of rule 3.1113(d). It supplements
Plaintiff's Bench Brief re Gateway Sequencing and Inland Oversight (filed May 12, 2026, Tab 26)

without duplicating it, and incorporates by reference the operative papers designated at Transaction ID 79429280 (filed May 8, 2026) and the May 21, 2026 consolidated-cohort courtesy bundle.

0. INTRODUCTION (FIRST NINETY SECONDS)

1. **What 802 is.** This case tests CSAA's February 25, 2021 denial letter and institutional claim-handling under Insurance Code section 790.03(h) and the Fair Claims Settlement Practices Regulations (10 CCR sections 2695.1 through 2695.14). It is not the Abdelhalim trial-litigation case; the gravamen is pre-suit commercial misrepresentation and concealment in the claim file.
2. **What CSAA is doing.** CSAA asks this Court to grant anti-SLAPP relief, sustain a demurrer, and strike the FAC under CCP section 436 before discovery, while in companion case CGC-25-631801 CSAA and Department 301 already treated the same silent-witness materials as litigation conduct CSAA possessed, transferred, and fully litigated.
3. **Why it matters.** Under Inland Oversight Committee v. City of San Diego (2017) 8 Cal.App.5th 1150, 1158, threshold statutory exclusions must be resolved before prong-two merits. Under Park v. Board of Trustees (2017) 2 Cal.5th 1057 and Aguilar v. Lerner (2004) 32 Cal.4th 974, CSAA cannot adopt incompatible gravamen selections across related proceedings for procedural advantage.
4. **What the binder is.** The consolidated June 24 chambers binder contains approximately sixty filings organized in seven tracks. This Roadmap is the landscape map. Tab 26 is the gateway sequencing brief. Tabs 3 through 5 are the operative oppositions on the seven cohort motions.

Sample opening for the bench. The Court confronts a dense consolidated hearing on seven motions spanning anti-SLAPP, demurrer, section 436, reply-declaration misconduct, sanctions, specified discovery, and leave to amend. The core claim is insurance fraud and unfair competition arising from CSAA's February 25, 2021 denial letter and concealed investigative omissions. Companion case CGC-25-631801 and this case are complementary, not duplicative: Department 301 locked a litigation-conduct frame for anti-SLAPP immunity; Department 302 now tests whether CSAA may abandon that frame to defeat fraud claims on the same materials. Plaintiff asks the

Court to begin with this Roadmap and Tab 26, resolve threshold exclusions under section 425.17(c) and Inland Oversight before any prong-two analysis, and deny the dispositive motions so fraud merits may proceed on the regulatory and FAC record in Tracks 3 and 4.

I. EXECUTIVE THESIS

This is an insurance bad-faith and UCL action arising from CSAA's February 25, 2021 denial letter and concealed investigative omissions. The First Amended Complaint (filed March 6, 2026) pleads omission fraud, concealment fraud, and a UCL cause. The theory of liability, with record anchors only, follows four lanes:

Lane	Authority	Tab anchors
Misrepresentation	<u>Egan v. Mutual of Omaha</u> (1978) 24 Cal.3d 809; <u>Wilson v. 21st Century Ins. Co.</u> (2007) 42 Cal.4th 815; Ins. Code section 790.03(h); 10 CCR sections 2695.1 through 2695.14	Tabs 41, 08, FAC
Scienter / knowledge	May 12, 2026 anti-SLAPP grant in 801 (Tab 42); 801 MPA possession and transfer narrative; supplemental RJN of 801 record	Tabs 42, 50 through 51C
Reliance / injury	FAC allegations; Decl. Tab 09; lodged trial transcripts	Tabs 09, 12, 49
UCL channel	<u>Zhang v. Superior Court</u> (2013) 57 Cal.4th 364; insurer representations are not isolated litigation speech when pleaded as commercial claim-handling	Tabs 03, 14, 41

Defendant’s April 9, 2026 anti-SLAPP motion and April 13, 2026 demurrer ask this Court to treat the denial letter as pre-litigation protected speech while disowning the trial-conduct record CSAA immunized in 801. Tracks 3 and 4 (Tabs 3 through 5, 7 through 12, 41) contain the merits analysis; this Roadmap orients the bench only.

II. TWO CASES, ONE INSURER

The same silent-witness nucleus appears in CGC-25-631801 (Dept. 301; May 12, 2026 anti-SLAPP grant, RFJN at Tab 42) and CGC-25-631802 (Dept. 302; pre-suit commercial denial-letter gravamen). The cases are **complementary, not duplicative**: 801 locked a litigation-conduct frame for anti-SLAPP immunity; 802 tests insured-facing representations in the claim file and denial letter.

Dimension	CGC-25-631801 (801)	CGC-25-631802 (802)
Defendants	Abdelhalim et al. plus CSAA posture	CSAA only
Gravamen CSAA won on	Litigation conduct (MILs, in-court statements, file handling)	Pre-litigation denial letter plus institutional claim practice
May 12 order role	Anti-SLAPP granted on litigation frame	Judicially noticed (Tab 42); not res judicata on letter fraud
Role at June 24	Constrains 802 via estoppel and contradiction	Merits court for fraud and UCL on commercial frame

Critical boundary. The May 12 order adopted CSAA’s **litigation-conduct frame** for prong-one anti-SLAPP analysis. It did **not** adjudicate unknown-provenance claims or “news to me” statements as historically true. Department 301 accepted CSAA’s selected gravamen to grant relief; that acceptance supplies estoppel predicates and threshold sequencing (Tabs 26, 46, 46A) without merging 802 commercial merits or extrinsic-fraud equity reserved to 801.

III. CONTRADICTION ARCHITECTURE

Position-adoption estoppel under Aguilar, supra, and Park, supra, binds CSAA to 801-adopted positions when 802 motion arguments assert incompatible facts or gravamen selections:

801 position adopted or argued	802 position now	Binder / FAC anchor
Gravamen is litigation conduct; section 425.17(c) inapposite on that frame	Letter-only pre-suit commercial frame; denial letter as protected pre-litigation speech	Tabs 26, 46, 46A, 14; May 12 minutes
Gathered, maintained, transferred 911, CAD, and BWC materials as protected litigation activity	Failed to obtain materials; investigation irrelevant to denial letter	Tabs 50 through 51C, 08, 41; 801 MPA pp. 6, 9 to 11
Silent-witness issues “fully litigated” via MIL 6, MIL 8, MIL 17 and scheduling order	O’Connell reply declarations supply new forensic narrative	Tabs 06, 10, 31, 32, 35, 48; May 12 RFJN
Named CSAA and counsel; institutional nexus under section 47(b)	Passive funder; no litigation role; improper imputation of counsel acts	Tabs 42, 47; 802 Anti-SLAPP Sec. III.D
Immunity for false representations to the Court as protected petitioning	Denies institutional misrepresentation in claim file; “good faith interpretation”	Tab 50C; 801 MPA p. 6; FAC (Mar. 6, 2026)

801 position adopted or argued	802 position now	Binder / FAC anchor
MIL 6 and MIL 17 truth-claims (materials not produced, unknown provenance) in fully litigated record	Reviewed available evidence; performed compliant investigation before denial	Tabs 50 through 51C, 08; 802 Anti-SLAPP and section 436 MPA
“Even if CSAA ratified PSA litigation tactics,” activity is protected petitioning	CSAA subsequently had no role in litigation aside from funding counsel	Tabs 42, 50; 801 MPA lines 1418 to 1424
In-court receipt, possession, and production statements treated as factual petitioning	In-court statements are interpretation, not knowingly false representations	Tabs 49, 12; 802 Demurrer p. 9

CSAA cannot maintain these incompatible positions for procedural advantage. Aguilar and Park require one coherent story on the same nucleus of materials. Estoppel constrains 802 motion arguments; it does not adjudicate extrinsic-fraud merits reserved to Department 301.

IV. SEVEN TRACKS (BINDER TAXONOMY)

Track	Purpose	Primary tabs
1 Procedural shell	Consolidation, withdrawal, timeliness	01, 02, 30, 31, 34
2 Threshold / gateway	<u>Inland Oversight</u> , section 425.17(c), Flatley	26A, 26, 27, 33 through 33C, 46, 46A, 47, 42, 44
3 Operative merits	Anti-SLAPP, demurrer, section 436 oppositions	03, 04, 05, 09

Track	Purpose	Primary tabs
4 Record / RJN	Insurance Code, FCSPR, orders, exhibits	07, 08, 11, 12, 41 through 45, 49
5 Misconduct / sanctions	Reply papers, RPC 3.3, section 128.7	06, 10, 32, 35 through 35C, 48, 15
6 Amendment / cure	TAC, April 30 preservation	13, 16, 37, 38, 43
7 Discovery / cross-case	Section 425.16(g), Set Six, estoppel	36 through 36C, 40, 50 through 53A

Minimum reading set: Tab 26A (this Roadmap); Tab 26 (gateway sequencing); Tab 03 (anti-SLAPP opposition); Tab 42 (May 12, 2026 801 order); Tab 50 (supplemental RJN of 801 record and defense gaps).

V. MOTIONS AND FRAUD PATH

Seven cohort motions (cover letter Section 1) map to the fraud path as follows:

Motion	Requested ruling	Fraud path
(A) Anti-SLAPP	Deny at section 425.17(c) threshold first	Opens discovery and merits on Insurance Code and FCSPR floor
(B) Demurrer	Overrule	FAC fraud and UCL causes proceed at pleading stage
(C) MTS O'Connell reply decl	Grant	Removes new forensic narrative inconsistent with 801 record
(D) Section 436 MTS	Deny	FAC stands; no strike before merits

Motion	Requested ruling	Fraud path
(E) Renewed MFL-TAC	Grant leave	Cure path preserves regulatory and estoppel allegations
(F) Section 128.7 sanctions	Grant	Addresses reply-cycle misconduct affecting record integrity
(G) Section 425.16(g) discovery	Grant	Specified discovery on institutional claim file

Key point. Denying the dispositive motions at threshold is the path to fraud merits. If anti-SLAPP is denied, fraud proceeds on the Insurance Code and FCSPR floor through the UCL channel (Zhang, supra). Tab 26 contains the sequencing analysis; Tabs 3 through 5 contain the operative opposition.

VI. SCOPE RESERVATION

Plaintiff preserves the inverse-severance architecture between Departments 301 and 302:

- **Department 302 does not adjudicate** 801 anti-SLAPP merits on the litigation-conduct frame or extrinsic-fraud equity theories. Those remain reserved to CGC-25-631801 (Dept. 301), as stated in Tab 26.
- **Department 302 may notice** 801 adopted positions (Tab 42) and **apply** them as constraints under Aguilar, Park, and Inland Oversight when resolving 802 threshold and motion arguments.
- **Fraud merits** in the FAC (Tracks 3 and 4) and **contradiction proof** in Tracks 2 and 7 proceed in 802 without merging 801 extrinsic-fraud adjudication.

Department 302 may adjudicate the commercial denial-letter frame and Inland Oversight threshold

1 sequencing without reaching independent-equity theories at this hearing. No order on 801 merits
2 is requested.

3 _____
4 Date: June 15, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
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Dated: May 25, 2026



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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this memorandum.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1113(d)	Page limit for memorandum	Length within applicable limit	Page count
2	CRC 3.1113(b)	Required sections (facts, law, argument)	Organized sections in body	Memorandum body
3	CRC 3.1113(j)	Incorporation by reference where used	ROA placeholders in text	Body sections
4	CCP 1005(b)	Reply timing cross-reference where applicable	Reply deadline cited if applicable	Body